

Calendar line 9

25CV470062

Meral Shirazipour v Volkswagen Group of America, inc.

MOTION TO COMPEL

This action arises under the Song-Beverly Consumer Warranty Act. Plaintiff seeks discovery concerning not only Plaintiff's subject vehicle, but also documents relating to similar vehicles, defects, customer complaints, technical investigations, and Defendant's knowledge of the alleged defect condition. Defendant objects specifically to request for production Number 30 and 31 that the requests are overbroad.

Under the California Civil Discovery Act, discovery is permitted regarding any matter that is relevant to the subject matter involved in the action or reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010.) In Song-Beverly matters, discovery concerning substantially similar vehicles or defects may be relevant, particularly where plaintiff alleges willful failure to comply with warranty obligations and seeks civil penalties. Discovery relating to manufacturer knowledge, recurring defect conditions, technical service information, repurchase practices, and similar consumer complaints may bear on notice, willfulness, and the reasonableness of repair efforts.

However, discovery must remain proportional and reasonably tailored. The Court agrees with Defendant that Plaintiff is not entitled to unlimited discovery concerning all vehicles, all defects, or all complaints without limitation. Requests untethered to the alleged defect or lacking reasonable temporal or technical limitation are overbroad.

Accordingly, the motion is GRANTED to the extent the requests seek documents concerning:

- (1) the same make, model, and generation/platform as Plaintiff's vehicle;
- (2) vehicles equipped with the same relevant component or system allegedly at issue;
- (3) substantially similar defect symptoms or repair conditions;
- (4) technical service bulletins, engineering investigations, recalls, warranty analyses, or repurchase data relating to the alleged defect condition; and
- (5) consumer complaints concerning substantially similar issues.

Unless otherwise agreed by the parties, the scope shall be limited to a reasonable time period of five years surrounding the manufacture date of Plaintiff's 2019 Volkswagen Golf vehicle.

The motion is DENIED to the extent the requests seek:

- (1) information regarding unrelated vehicle lines or unrelated defects;
- (2) unlimited nationwide discovery without limitation as to defect or component;
- (3) documents lacking reasonable nexus to the alleged defect condition; or
- (4) materials protected by attorney-client privilege or attorney work product doctrine.

Defendant shall serve further verified responses consistent with this ruling and produce responsive nonprivileged documents within 20 days. Any withheld documents shall be identified in a privilege log.

The Court declines to impose sanctions at this time, finding substantial justification existed for portions of Defendant's objections given the breadth of the requests.

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